

REDUNDANCY APPEAL OUTCOME

CONFIDENTIAL · REF GR-APP-2026-007 · 06 APRIL 2026

ISSUED BY THE OFFICE OF THE CHIEF OPERATING OFFICER | APPEAL PANEL |
GRANTHORNE HOUSE

Ms Leah Miller
18 Ridgeway Crescent
Sale
Manchester
M33 6XJ

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Re: Appeal against the redundancy decision of 04 March 2026, outcome

Dear Leah,

Thank you for your appeal letter dated 09 March 2026 against the Company's decision to make your role of Operations Manager, Network South, redundant. The appeal hearing took place at Granthorne House on 23 March 2026 and was chaired by me, with Ms Sarah Brentwood (HR Business Partner) in attendance as note-taker. You attended without representation, as is your right.

I have carefully considered: the points raised in your appeal letter; your written representations and the additional statement you handed up at the hearing; the redundancy paperwork issued by the HR Director; my interview record with Ms Karen Westwood (HR Director) of 18 March 2026, which (with the panel's agreement) was held in advance of the appeal hearing so that the content could be put to you on the day; and the records held by HR in relation to the selection process, including the scoring matrix.

Decision

Your appeal is not upheld. The decision to terminate your employment by reason of redundancy with effect from 04 June 2026 stands.

My reasoning on each ground of appeal

GROUND 1, NOT A GENUINE REDUNDANCY

You contend that the restructure is a pretext and that the underlying reason for your dismissal lies elsewhere. I do not accept this. The Operations Restructure (Programme "Compass") has been considered at Board level since the Q3 2025 strategy review and is being implemented across all three Network functions. Board

minutes from October 2025 (which I have reviewed) record the Board's in-principle approval of the headcount reductions; that in-principle position was formally re-affirmed by the Board on 28 January 2026, prior to the Operations Leadership group meeting on 04 February 2026 at which the indicative shape of Compass was cascaded, and the detailed programme was confirmed in the Board's minutes of 11 February 2026. The redundancy situation is, in my view, a genuine one. This ground is not made out.

GROUND 2, SELECTION CRITERIA NOT APPLIED FAIRLY

You contend that the criteria were not applied fairly and you have requested sight of the scoring matrix. I am satisfied, having reviewed the matrix myself, that the criteria were fairly applied. The full scoring matrix forms part of the confidential HR file and is not released to candidates as a matter of policy. I can confirm that the criteria applied (skills, experience, performance, conduct) were the standard criteria used across the Group, that they were weighted equally, and that you were scored against the same criteria as the three other post-holders within the leadership cohort.

GROUND 3, DECISION CONNECTED TO YOUR EARLIER GRIEVANCE

You contend that the decision is connected to, or motivated by, the grievance you raised on 14 January 2026 against your line manager Mr Daniel Morley. I do not accept this. The grievance investigation was concluded by the HR Director on 18 February 2026. The redundancy consultation began on 18 February 2026 in line with the Compass programme timetable approved in principle by the Board on 28 January 2026 (and confirmed in detail by the Board on 11 February 2026). While the dates are close, I am satisfied that the two are factually unrelated and that the decision-makers in the redundancy process (Karen Westwood and myself) did not take the grievance into account in identifying you as the affected employee. This ground is not made out.

Procedural matters raised in addition to the three grounds

Grievance procedure section 207A TULRCA 1992 point. The panel notes the point you raise about the absence of a separate grievance hearing under reference GR-GRV-2026-014. Having reviewed the grievance file, the panel accepts that the investigation moved directly from the investigatory interviews to the outcome letter without a discrete grievance hearing being convened, and that this is at variance with paragraphs 33–46 of the ACAS Code of Practice on Disciplinary and Grievance Procedures. The panel does not consider that this irregularity, of itself, vitiates the redundancy decision now under appeal; but it is recorded here for transparency, and the panel directs that HR shall offer you a discrete grievance hearing under the same reference, on terms to be agreed in writing within fourteen (14) calendar days of the date of this letter, should you wish to pursue it. This direction is made without prejudice to either party's position on any future statutory uplift point.

Scale of Programme Compass section 188 TULRCA 1992 point. The panel addresses, as you requested, the question of whether Programme "Compass" engages the collective consultation obligations under section 188 of the Trade Union and Labour Relations (Consolidation) Act 1992. On the figures shared with the panel, Compass is currently scoped to result in no more than nine (9) at-risk roles in any rolling ninety-day period at the Trafford Park establishment, and accordingly the section 188 threshold (20 or more proposed redundancies at one establishment in any 90-day period) is not, on present plans, met. The Company will keep this position under formal review and, if and to the extent the position changes, will recognise an appropriate representative body, hold the prescribed minimum 30-day consultation, and notify the Secretary of State on Form HR1.

Status

This is the final stage of the Company's internal appeal process. If you remain dissatisfied with the outcome, you may wish to take independent advice (for example, from ACAS or a solicitor) about any further options open to you. The Company will continue to honour all of the entitlements set out in the HR Director's letter of 04 March 2026.

Yours sincerely,

R McEwan

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cc: Mr Anthony Granthorne, Chief Executive · Ms Karen Westwood, HR Director · Ms Sarah Brentwood, HR Business Partner (note-taker) · Personal HR file